

S.N. Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 6 December 2017 · WRIT - C No. 58173 of 2017 · **Writ dismissed; petitioner relegated to CGRF and Ombudsman under clause 7.10.**

HEADNOTE

A writ challenging electricity bills already disposed of by the Executive Engineer is not entertained where clause 7.10 of the U.P. Electricity Supply Code, 2005 gives a statutory remedy before the Consumer Grievance Redressal Forum and the Ombudsman. Petition dismissed.

FACTUAL SUMMARY

S.N. Singh challenged electricity bills submitted by the Executive Engineer of Dakshinanchal Vidyut Vitran Khand, Mainpuri. The Executive Engineer had already disposed of that grievance by an order dated 16 November 2017, stating that the readings of the check meter and the main meter were identical. Dissatisfied with that decision, the petitioner invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and the distribution licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-ombudsman-billing-grievance

HOLDING

Where a consumer remains dissatisfied with the Executive Engineer's disposal of a billing grievance (here, that check-meter and main-meter readings were identical), the writ court will not entertain the petition because clause 7.10 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy before the Consumer Grievance Redressal Forum and the Ombudsman. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

A writ challenging electricity bills already disposed of by the Executive Engineer is not entertained where clause 7.10 of the U.P. Electricity Supply Code, 2005 gives a statutory remedy before the Consumer Grievance Redressal Forum and the Ombudsman. Petition dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE IMPUGNED BILLS WERE CORRECT, AND WHETHER THE EXECUTIVE ENGINEER WAS RIGHT THAT THE CHECK-METER AND MAIN-METER READINGS WERE IDENTICAL

Petition declined on the statutory-remedy ground without examining the bills or the 16 November 2017 order on merits.

¶ 1